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ferred to the Chairman of the War Production Board by Executive order [1] of this date:

NOW, THEREFORE, by virtue of the authority vested in me by section 124 (d) of the Internal Revenue Code, I hereby prescribe the following regulations governing the issuance of Non-Necessity Certificates under section 124 (d) of the Internal Revenue Code:

1. *Definitions.* As used throughout these regulations:

(a) "Emergency facility" means any facility, land, building, machinery, or equipment, or part thereof, the construction, reconstruction, erection, installation, or acquisition of which was completed after December 31, 1933, and with respect to which a Necessity Certificate has been made.

(b) "Necessity Certificate" means a certificate made pursuant to section 124 (f) of the Internal Revenue Code, as amended, certifying that the construction, reconstruction, erection, installation, or acquisition of the facility, referred to in the certificate, is necessary in the interest of national defense during the emergency period.

(c) "Emergency period" means the period beginning January 1, 1940, and ending on the date on which the President proclaims that the utilization of a substantial portion of the emergency facilities with respect to which certifications under section 124 (f) of the Internal Revenue Code have been made is no longer required in the interest of national defense.

(d) "Non-Necessity Certificate" means a certificate made pursuant to section 124 (d) of the Internal Revenue Code, certifying that an emergency facility ceased, on the date specified in the certificate, to be necessary in the interest of national defense during the emergency period.

(e) "Certifying authority" means the Chairman of the War Production Board or his duly authorized representative.

2. *Determination of non-necessity.* An emergency facility shall be considered as having ceased to be necessary in the interest of national defense during the emergency period and a Non-Necessity Certificate with respect thereto shall be promptly issued by the certifying authority upon proper application therefor where, in view of the condition, location and ownership of such emergency facility, the certifying authority has determined that no presently foreseeable substantial need for such emergency facility exists in the interests of national defense.

3. *Procedure.* The certifying authority is empowered to obtain reports and recommendations from such government agencies as it may designate.

4. *Date to be specified in certificate.* The certificate will specify the date on which the emergency facility ceased to be necessary in the interest of national defense.

5. *Form of application.* An application for a Non-Necessity Certificate shall be in the form prescribed by the certifying authority.

6. *Place of filing application.* An application for a Non-Necessity Certificate shall be filed with the War Production Board in Washington, D. C., or at any other office designated by the certifying authority.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
September 30, 1944.

[F. R. Doc. 44–15234; Filed, Oct. 2, 1944; 10:56 a. m.]

[1] E.O. 9486, *supra*.

EXECUTIVE ORDER 9484

AUTHORIZING THE SECRETARY OF WAR TO TAKE POSSESSION OF AND OPERATE THE PLANTS AND FACILITIES OF THE FARRELL CHEEK STEEL COMPANY, LOCATED AT SANDUSKY, OHIO

Correction

In paragraph 1 of Executive Order 9484, appearing at page 11731 of the issue for Tuesday, September 26, 1944, "Farrell Check Steel Company" should read "Farrell Cheek Steel Company" wherever it occurs.

Regulations

TITLE 7—AGRICULTURE

Chapter X—War Food Administration

(Production Orders)

[WFO 9–15]

PART 1220—FEED

SET ASIDE REQUIREMENTS FOR PROCESSORS OF OILSEED FOR NOVEMBER 1944

Pursuant to the authority vested in me by War Food Order No. 9 (8 F.R. 16960,